

also argue that there is no reason for Saadeh, Ward, and Country Equestrian to be included in this cause of action. (*Ibid.*)

Business and Professions Code, section 7031, subdivision (b), provides that “a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract.” Here, as per the plain language in the statute, Plaintiffs properly allege that they utilized the services of an unlicensed contractor and are now suing to recover all compensation paid “for performance of any act or contract.” (Complaint, ¶¶ 25, 31-32, 77-81.)

Moreover, Saadeh and Ward are proper parties due to the alter ego allegations (Complaint, ¶¶ 11-16), but the Court does not understand why Country Equestrian is included in this claim. The Complaint does not make this clear.

The Court GRANTS Defendants’ motion for judgment on the pleadings as to Plaintiffs’ eighth cause of action for Business and Professions Code section 7031(b) recovery, as to Country Equestrian only, with leave to amend.

Tenth Cause of Action on License and Contractor Bonds

The parties agree that this claim is not alleged against any of the named defendants in the Complaint: Saadeh; Ward; Country Equestrian; or Dig This Inc. (Amended Opposition, p. 15; Amended Reply, p. 10.) Therefore, the Court declines to rule on this portion of the Motion.

Ruling

The Court GRANTS Defendants’ motion for judgment on the pleadings as to the first cause of action for promissory fraud, as to Dig This, Inc. only, with leave to amend, and as to the eighth cause of action for Business and Professions Code section 7031(b) recovery, as to Country Equestrian only, with leave to amend. The Court DENIES Defendants’ motion for judgment on the pleadings as to the remaining causes of action.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc. § 438 (h)(2).)

3. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
***HEARING ON MOTION IN RE: LEAVE TO FILE SUPPLEMENTAL COMPLAINT**
FILED BY: MORRISSEY, ALEXANDRA
TENTATIVE RULING:

Plaintiffs Patrick and Alexandra Morrissey (“Plaintiffs”) filed a Motion for Leave to File a Supplemental Complaint on January 14, 2026 (“Motion for Leave”). The Motion for Leave was set for hearing on May 18, 2025.

As part of earlier Case Management Conference (CMC) proceedings, the Court advanced and granted the Motion for Leave. The hearing date was to be vacated. See Order entered January 29, 2026.

Disposition

The Court finds and orders as follows:

1. The matter is moot and the hearing is **VACATED**.

4. 9:00 AM CASE NUMBER: C24-02209

CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AGAINST THE 2ND AMENDED COMPLAINT OF PATRICK MORRISSEY AND ALEXANDRA MORRISSEY
FILED BY: QUALITY LOAN SERVICE CORPORATION**

TENTATIVE RULING:

Before the Court is Defendant Quality Loan Service Corporation (“Defendant” or “Quality”)’s motion for judgment on the pleadings (“MJOP”). The MJOP relates to Plaintiff Patrick Morrissey and Alexandra Morrissey (collectively, “Plaintiffs”)’s Second Amended Complaint (“SAC”) for (1) private nuisance, (2) damages for public nuisance, (3) injunctive relief for abatement of nuisance, (4) damages for trespass, (5) diversion of surface waters, (6) diversion of surface water to groundwater, (7) negligence, and (8) declaratory relief. As best the Court can determine, only the declaratory relief cause of action is alleged against Quality.

Defendant moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 on the grounds that Quality is not subject to liability due to the litigation privilege. Additionally, Defendant moves against Plaintiffs’ eighth cause of action for declaratory relief on the grounds that there is not a present and actual controversy regarding Defendant’s involvement with the Subject Property.

This is Defendant Quality’s first challenge to Plaintiffs’ claims.

For the following reasons, the MJOP is **GRANTED**, with leave to amend.

Judicial Notice

Defendant requests judicial notice of several documents from the Contra Costa County Recorder’s Office. The unopposed Request is **GRANTED**. (Evid. Code §§ 452, 453.)

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil &